

**Court No. - 32**

**Case :-** WRIT - C No. - 25310 of 2018

**Petitioner :-** Shafiq

**Respondent :-** The U.P. State Power Corporation Limited And 2 Others

**Counsel for Petitioner :-** S. Kamal Akhtar Khan, Mahesh Kumar Srivastava

**Counsel for Respondent :-** C.S.C., Pranjali Mehrotra

**Hon'ble Shashi Kant Gupta,J.**

**Hon'ble Ajit Kumar,J.**

List the matter after one week to enable the learned counsel for the petitioner to file supplementary affidavit explaining the delay in filing the present writ petition.

**Order Date :-** 26.7.2018

Arun

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**Respondent :- The U.P. State Power Corporation Limited And 2 Others**

**Counsel for Petitioner :- S. Kamal Akhtar Khan, Mahesh Kumar Srivastava**

**Counsel for Respondent :- C.S.C., Pranjal Mehrotra**

**Hon'ble Shashi Kant Gupta,J.**

**Hon'ble Ajit Kumar,J.**

This writ petition has been filed, inter alia, for the following reliefs:

***(a) Issue a writ, order or direction in the nature of certiorari quashing the Demand notice dated 18.11.2016 for Rs.51,730.03 issued by the respondent no. 2 (Annexure No. 3 to this writ petition).***

***(b) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 and 3 to re-store the domestic Electric Connection No. PV93575 Account I.D. No. 8252344000 of the petitioner, installed at his residence village/Mohalla Shiri Milan, Near Waheed Chakki, Bilaspur, District Rampur, immediately which has been illegally disconnected by the respondent department on 03.11.2016.***

***(c) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 and 3 to prepare a fresh electricity bill of the petitioner till the date of disconnection i.e. 03.11.2016 deducting the previous electricity bills paid by the petitioner to the department since the date of installing the electric connection up to June, 2016."***

By order dated 26.07.2018 passed by this Court, learned counsel for the petitioner was directed to file supplementary affidavit explaining the delay in filing the present writ petition.

In pursuance of the aforesaid order, supplementary affidavit has been filed today by the learned counsel for the petitioner, which is taken on record.

Learned counsel for the petitioner has given following explanation contained in paragraph nos. 2 to 5 of the supplementary affidavit:-

**"2. That the notice dated 16.11.2016 issued by the Executive Engineer (Respondent No. 2) was served upon the petitioner in the last week of December, 2016. The petitioner is a very poor senior citizen of about 72 years of age. The petitioner begged Shri Parvz Khan to go to Allahabad High Court and filed the present writ petition on his behalf. Shri Parvz Khan in the last week of February, 2017 came to Allahabad and engaged Shri S. Kamal Akhtar Khan as his counsel and handed over the entire documents. The learned counsel got the photo I.D of Shri Parvz Khan from High Court Photo I.D. Centre and thereafter the deponent came back to Rampur.**

**3. That the learned counsel gave the file of the petitioner to his Clerk, Mithun Kumar on 02.03.2017 for preparing the file. Thereafter the Clerk of the counsel did not resume his normal duty and he was said to be disappeared without any information to his landlord as well as the counsel. Unfortunately on 09.03.2017 his dead body was found in the area of police station Kokhraj, District Kaushambi. On information, the family members of the deceased came and took the dead body and his entire belongings with them to Aligarh.**

**4. That the counsel Shri S. Kamal Akhtar reached at Aligarh and called on his parents along with a local Advocate but no information regarding the instant file could be obtained. The mediator local advocate some how obtained the file from the clutches of the parents of deceased Mithun Kumar in the last week of May, 2018. The counsel requested the petitioner to sent Shri Parvz Khan for fresh Photo I.d. but the deponent came to Allahabad on 09.07.2018 and then the file of the case was again prepared and filed before this Hon'ble Court on 24.07.2018.**

**5. That the petitioner intentionally, deliberately and knowingly did not commit any mistake approaching this Hon'ble Court in time but due to unfortunate murder of the Clerk of the Counsel, Mithun Kumar, the delay has been occurred and the same is highly condoned. "**

From the perusal of the aforesaid supplementary affidavit, it appears that vague grounds have been taken by the learned counsel for the petitioner in order to explain the delay in filing the present writ petition, which is not at all inspiring and is

absolutely unreliable.

In view of the above, this writ petition is dismissed on the ground of delay and laches on the part of the petitioner.

However, it is open for the petitioner to seek remedy as provided under Clause 6.5 of U.P. Electricity Supply Code, 2005 in accordance with law.

This order has been passed in the presence of Sri Pranjal Mehrotra, learned counsel for the Electricity Department.

**Order Date :- 2.8.2018**

**Arun**